

Holiday entitlement

1. Entitlement

Almost all people [classified as workers \(/employment-status/worker\)](/employment-status/worker) are legally entitled to 5.6 weeks' paid holiday a year (known as statutory leave entitlement or annual leave).

This includes:

- agency workers
- workers with 'irregular hours' (where the number of hours they work in a pay period often or always changes)
- 'part-year' workers (where there are periods of at least a week in a leave year where they do not need to work and are not paid)

An employer can include bank holidays as part of statutory annual leave.

Statutory annual leave entitlement

Most workers who work a 5-day week must receive at least 28 days' paid annual leave a year. This is the equivalent of 5.6 weeks of holiday.

Working part-time

Part-time workers who work regular hours for the whole year are entitled to at least 5.6 weeks' paid holiday, but this will amount to fewer than 28 days.

For example, if they work 3 days a week, they must get at least 16.8 days' leave a year (3×5.6).

Use the [holiday entitlement calculator \(/calculate-your-holiday-entitlement\)](/calculate-your-holiday-entitlement) to work out a part-time worker's leave.

Working irregular hours or for part of the year

People working irregular hours or part of the year are entitled to up to 5.6 weeks statutory leave.

They will build up ('accrue') leave depending on the hours they've already worked, rather than getting a fixed number of days or hours.

Use the [holiday entitlement calculator \(/calculate-your-holiday-entitlement\)](/calculate-your-holiday-entitlement) to work out how much leave they've accrued in a pay period.

For leave years beginning on or before 31 March 2024, leave entitlement for irregular-hours and part-year workers does not need to be accrued based on hours they've already worked. You can use the [holiday entitlement calculator \(/calculate-your-holiday-entitlement\)](/calculate-your-holiday-entitlement) to estimate their entitlement based on the average days or hours they work each week.

Limits on statutory leave

Statutory paid holiday entitlement is limited to 28 days. For example, staff working 6 days a week are only entitled to 28 days' paid holiday.

Bank holidays

Bank or public holidays do not have to be given as paid leave.

An employer can choose to include bank holidays as part of a worker's statutory annual leave.

Extra leave

An employer can choose to offer more leave than the legal minimum. They do not have to apply all the rules that apply to statutory leave to the extra leave. For example, a worker might need to be employed for a certain amount of time before they become entitled to it.

Other aspects of holiday entitlement

Workers have the right to:

- [get holiday pay \(/holiday-entitlement-rights/holiday-pay-the-basics\)](/holiday-entitlement-rights/holiday-pay-the-basics)
- build up holiday entitlement during certain types of leave, such as maternity, paternity, or adoption leave
- build up holiday entitlement while off work sick
- request holiday at the same time as [sick leave \(/taking-sick-leave\)](/taking-sick-leave)

Disputes

Paid annual leave is a legal right that an employer must provide. If a worker thinks their rights to leave and pay are not being met there are a number of ways to [resolve the dispute \(/solve-workplace-dispute/\)](/solve-workplace-dispute/).

2. Calculate leave entitlement

For regular-hours workers, employers can use a 'leave year' or an 'accrual' system to work out how much leave their staff should get.

For irregular-hours and part-year workers, employers must use a specific accrual system.

For leave years beginning on or before 31 March 2024, employers can use either a leave year or an accrual system to work out leave for irregular-hours or part-year workers. You can use the [holiday entitlement calculator \(/calculate-your-holiday-entitlement/\)](/calculate-your-holiday-entitlement/) to estimate their entitlement based on the average days or hours they work each week.

Leave year

An employer should tell their staff the dates of their statutory leave year as soon as they start working, for example, it might run from 1 January to 31 December.

Workers must take their statutory leave during this time. If a leave year is not set out in a contract then it will start:

- on the first day of a new job (if started after 1 October 1998)
- on 1 October (if started on or before 1 October 1998)

The leave year and holiday entitlement is not affected by maternity, paternity or adoption leave. The employee still builds up ('accrues') holiday over these periods.

Starting a job part way through a leave year

If a worker starts their job part way through a leave year, they're only entitled to part of their total annual leave for the current leave year. What they get depends on how much of the year is left.

If a worker starts part way through the month, they can accrue one-twelfth of their leave from their first day.

Example

Someone works a 5-day week and is entitled to 28 days' annual leave a year. The leave year starts on 1 January but they start their job on 13 January. They're entitled to 2.5 days' leave for January ($28 \text{ days} \div 12 = 2.33$), rounding up to the nearest half day.

Alternatively, their employer can choose to calculate the first month's leave 'pro-rata' (in proportion to the number of days worked) instead. This means the worker does not accrue one-twelfth of their leave from their first day.

Use the [holiday entitlement calculator \(/calculate-your-holiday-entitlement\)](/calculate-your-holiday-entitlement) to work out how much leave someone has when they start part way through the leave year.

Accrual system

For regular hours workers, annual leave begins to build up ('accrue') as soon as they start their job. An employer can use an accrual system to work out a worker's leave during the first year of the job. Under this system, a worker gets one-twelfth of their leave in each month.

Example

Someone works a 5-day week and is entitled to 28 days' annual leave a year. After their third month in the job, they'd be entitled to 7 days' leave (a quarter of their total leave, or $28 \div 12 \times 3$).

Irregular-hours or part-year workers

Employers need to use a specific accrual system to calculate leave for irregular-hours or part-year workers.

If their leave year began on or before 31 March 2024, employers do not need to use this system until their leave year renews.

The amount of leave depends on:

- how often they get paid (their 'pay period')
- how many hours they worked in a pay period

Their entitlement will be 12.07% of the hours they worked in a pay period. It must be rounded up to the nearest hour if the entitlement is 0.5 of an hour or more.

For example, if they worked 30 hours and are paid weekly, they'll have earned 4 hours leave ($30 \times 12.07 \div 100 = 3.621$). They can take this leave from their next pay period.

Carrying over leave

The worker's contract says how many days' leave they can carry over into the next year.

If a worker gets 28 days' leave, they can carry over a maximum of 8 days.

If a worker gets more than 28 days' leave, their employer may allow them to carry over any additional untaken leave. Check the employment contract, company handbook or intranet to see what the rules say.

Workers on parental or sick leave

If a worker cannot take some or all of their leave entitlement because they're on family-related leave, for example parental leave, they can carry over their untaken leave into next year.

If a worker could not take their leave entitlement because they were sick, they can carry over:

- up to 20 of their 28 days' leave entitlement if they work regular hours for the whole year
- up to 28 days of their leave entitlement if they work irregular hours or for part of the year

If a worker was unable to take leave

Workers can carry over their whole leave entitlement if any of the following apply:

- they did not receive '[rolled-up holiday pay](#)' ([/holiday-entitlement-rights/holiday-pay-the-basics](#)) that they were entitled to
- they were not given reasonable opportunity to take leave
- they were not told that they would lose their leave if they did not take it by the end of the leave year

3. Holiday pay

Workers are entitled to a week's pay for each week of statutory leave that they take.

Most workers are entitled to 5.6 weeks' paid holiday a year. You can use the [holiday calculator \(/calculate-your-holiday-entitlement\)](/calculate-your-holiday-entitlement) to work out how much leave someone should get.

How to work out a week's pay

A week's pay is worked out according to the kind of hours someone works and how they're paid for the hours. This includes full-time, part-time, term-time and casual workers.

Working pattern	How a week's pay is calculated
Regular hours and fixed pay (full- or part-time)	A worker's pay for a week
Shift work with regular hours (full- or part-time)	The average number of weekly fixed hours a worker has worked in the previous 52 weeks, at their average hourly rate
Irregular-hours and part-year work	A worker's average pay from the previous 52 weeks (only counting weeks in which they were paid)

Calculating average hourly or weekly rate

To calculate average hourly rate, only the hours worked and how much was paid for them should be counted. Take the average rate over the last 52 weeks.

A 'week' usually runs from Sunday to Saturday. Only use another 7-day period (like Thursday to Wednesday) if that's how a worker's pay is calculated.

If no pay was paid in any week, count back another week so the rate is based on 52 weeks in which pay was paid. You can count back a maximum of 104 weeks to find these.

If a worker has less than 52 weeks of pay, use the average pay rate for the full weeks they have worked.

Workers who are paid monthly

To work out a week's pay for someone who's paid monthly:

- 1 Calculate the worker's average hourly pay for the last month. Do this by dividing the month's pay by the number of hours worked in the month.
- 2 Calculate the weekly pay. Do this by multiplying the average hourly pay by the number of hours worked in a week.

Use the weekly pay calculation for each of the last 52 weeks to work out an average week's pay.

'Basic' and 'normal' rate of pay

For regular-hours workers (full- or part-time), employers must pay:

- at least 4 weeks of the worker's statutory entitlement at their 'normal' rate of pay
- the remaining 1.6 weeks at a 'basic' rate of pay

For workers who work part of the year, employers must also follow these rules if the worker's leave year began on or before 31 March 2024.

For irregular-hours workers or those who work part of the year, all leave must be paid at their 'normal' rate of pay.

'Normal' rate of pay includes commission, regular overtime payments, and any payments related to length of service or professional qualifications. It does not usually include bonus payments.

Rolled-up holiday pay

For regular-hours workers (full- or part- time), an employer cannot include an amount for holiday pay in the hourly rate (known as 'rolled-up holiday pay').

Employers can use rolled-up holiday pay for irregular-hours and part-year workers, unless their leave year began on or before 31 March 2024.

More information

There's [guidance for calculating holiday pay for workers without fixed hours or pay \(/government/publications/calculating-holiday-pay-for-workers-without-fixed-hours-or-pay\)](https://www.gov.uk/government/publications/calculating-holiday-pay-for-workers-without-fixed-hours-or-pay), which includes several examples.

You can also contact the [Advisory, Conciliation and Arbitration Service \(Acas\) \(https://www.acas.org.uk/contact\)](https://www.acas.org.uk/contact) with questions about general holiday pay issues.

Acas helpline

Telephone: 0300 123 11 00

Textphone: 18001 0300 123 1100

Monday to Friday, 8am to 6pm

[Find out about call charges \(/call-charges\)](https://www.acas.org.uk/call-charges)

4. Booking time off

The general notice period for taking leave is at least twice as long as the amount of leave a worker wants to take, plus 1 day. For example, a worker would give 3 days' notice for 1 day's leave.

An employer can refuse a leave request or cancel leave but they must give as much notice as the amount of leave requested, plus 1 day. For example, an employer would give 11 days' notice if the worker asked for 10 days' leave.

If the contract says something different about the notice a worker or employer should give, what's in the contract will apply.



Although employers can refuse to give leave at a certain time, they cannot refuse to let workers take the leave at all.

Part leave days

Some workers may be entitled to a part leave day - for example if they're part-time or have a half day's leave to take. How a part day should be taken is up to the employer.

When leave can and cannot be taken

Employers can:

- tell their staff to take leave, for example bank holidays or Christmas
- restrict when leave can be taken, for example at certain busy periods

There may be rules about this in the employment contract.

The notice period for this is at least twice as long as the leave they want their staff to take. The employer must tell the worker before the notice period begins.

If an employer wants a worker to take leave, they need to make sure that the worker can relax, rest and enjoy leisure during their holiday. For example, an employer cannot force a sick worker to take leave.

5. Taking holiday before leaving a job

During their notice period the worker may be able to take whatever is left of their statutory annual leave.

Use the [holiday entitlement calculator \(/calculate-your-holiday-entitlement\)](/calculate-your-holiday-entitlement) to work this out. How much they get depends on how much of the leave year has passed or how much leave they've accrued.

Taking more leave than the entitlement

If a worker has taken more leave than they're entitled to, their employer must not take money from their final pay unless it's been agreed beforehand in writing. The rules in this situation should be outlined in the employment contract, company handbook or intranet.

Getting paid instead of taking holidays

The only time someone can get paid in place of taking statutory leave (known as 'payment in lieu') is when they leave their job. Employers must pay for untaken statutory leave, even if the worker is dismissed for gross misconduct.

If an employer offers more than 5.6 weeks' annual leave, they can agree separate arrangements for the extra leave.





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